

The Meghalaya Cinemas (Regulation) Rules

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State of Meghalaya - Act

The Meghalaya Cinemas (Regulation) Rules

MEGHALAYA

India

The Meghalaya Cinemas (Regulation) Rules

Rule THE-MEGHALAYA-CINEMAS-REGULATION-RULES of 1960

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The Meghalaya Cinemas (Regulation) Rules

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Notification No. GAB. 224/90/1. - The Assam Cinemas (Regulation) Rules, 1960 as published in the Assam Government vide Notification No. GAG. 254/59/64, dated 16th February 1960 in exercise of the powers conferred by Section 10 of the Assam Cinema (Regulation) Act, 1953 has been adapted by the State of Meghalaya vide Meghalaya Adaptation of Laws and Orders (No. 3), 1973.

[As amended upto 1987 vide Meghalaya Cinema (Regulation) (Amendment) Rules, 1987].

Introductory

1.

Short title, and extent.

- (i) These Rules may be called the Meghalaya Cinemas (Regulation) Rules.

(ii)
They shall apply to all exhibitions by means of Cinematograph in the State of Meghalaya.

(iii)
[They shall deemed to have come into force in the 21st day of January, 1972.]
[As per provision of sub-section (2) of Section 1 of the Meghalaya Adaptation of Laws and Order (No. 3) 1973.]

2.
Definitions.

- In this rules, unless there is anything repugnant in tire subject or context-

(i)
[The "Act" means the Meghalaya Cinemas (Regulation) Act;]
[The Assam Cinemas (Regulation) Act, 1953, as adapted by the Meghalaya Adaptation of Laws and Orders (No. 3) of 1973.]

(ii)
"Auditorium" means the portion of the licensed place in which accommodation is provided for the audience or spectators to view the cinematograph exhibition;

(iii)
"enclosure" means that portion of the licensed place in which the Cinematograph apparatus is erected;

(iv)
"exit" includes an emergency exit and any entrance useable by the Public as an exit;

(v)
"Government" means the Government of the State of Meghalaya;

(vi)
"License" means a license granted under the provisions of the Act;

(vii)
"Licensee" means any person who has been granted a licence and includes his agents and managers;

(viii)
"Person" means any adult male or female individual and whether incorporated or not.

3.
Kinds of Licenses.

- There shall be four kinds of licensee, namely for-

(i)
Permanent cinemas;

(ii)
Temporary indoor cinemas;

(iii)
Temporary open air cinemas; and

(iv)
Touring cinemas.

4.
Construction of Cinema Building.

(1)
Any person desiring to put up a building or structure to be used as a permanent cinemas house shall make an application in writing to the Licensing Authority specifying the site where the cinema house is proposed to be put up. Each such application shall be accompanied by-

(a)
[No Objection Certificate. - A certificate from either the Municipality. Town Development Authority, or Town Committee exercising jurisdiction over the area and where none of these exists, from the District Council that there is no objection to the erection of the proposed Cinema building.]

[Amended Vide Meghalaya Cinema (Regulations) (Amendment) Rules 1987.]

(b)

Complete plans, elevation and sanction in duplicate, of the premises and all erections, or buildings thereon drawn correctly to the scale of one-eighth of an inch to one foot and showing the width of all stairways, and the number of steps in each, the width of corridors, gangways and doorways, the height of the galleries or tiers and the details of the cinematograph and of the plant for the generation or conversion of electrical energy;

(c)

[a site plan in duplicate on a separate sheet drawn to the scale of one fortieth of an inch to one foot showing the position of the premises in relation to any adjacent premises and to the public thoroughfare upon which the site of the premises abuts, and the arrangements, proposed for the parking of motor car and other vehicles within the proposed site;]

[Inserted Vide Meghalaya Cinema (Regulations) (Amendment) Rules 1987.]

(d)

Specifications of the various materials proposed to be used in the construction of the building;

(2)

On receipt of the application and the plans, the Licensing Authority shall forward the same to the Executive Engineer concerned for the approval and the applicant shall be bound to carry out such additions and alterations in the plans as may be directed by Executive Engineer concerned before the plans are finally approved by him.

After the plans are finally approved by the Executive Engineer concerned, the Licensing Authority with the prior approval of the State Government may grant in Form 'A' appended to these Rules, a "No Objection" Certificate in writing to the applicant to put up the Cinema house in accordance with the plans finally approved;

[The State Government in according approval to "No Objection" certificate shall take into consideration the fact whether the applicant has got any previous License for cinema and shall give preference to those having no such License.]

[Vide Notification No. GEN. 13/62/72, dated 1st September, 1969.]

Provided that such a "No Objection" certificate does by no means guarantee the issue of a cinema licence which depends on separate application and fulfilment of the requirement of prescribed Rules and instruction;

Provided further that in the case of a licence either for temporary open air cinema or for touring cinema, the condition of furnishing a "No Objection" certificate as required under Rule 11 (2) (11) and Rule 14(2) (11) respectively may be relaxed by the Licensing Authority to such extent as may be considered necessary having due regard to the safety measures for the spectators.

5.

Application for licence.

(1)

Every application for the grant or renewal of a licence shall be in writing and shall be signed by the applicant and submitted to the Licensing Authority.

(2)

Procedure for application-Application for the grant as distinct from the renewal of a permanent cinema licence shall be accompanied by;

(a)

full particulars regarding the ownership of, and all rights in, the premises and in the cinematograph apparatus to be used therein;

(b)

a true copy of the "No Objection" certificate under sub-rule (II) of Rule 4;

(c)

certificate from the Executive Engineer, P.W.D., of the area that the rules relating to the structural features of the building have been duly complied with;

(d)

certificate from the Electricity Department of the Government that the electrical installation conform to the required standard and the existing rules;

(e)

certificate from the District Officer or any other competent authority of Public Health Department that the arrangements for sanitation conform to the requirements of the rules;

(f)

an "approved Films Exhibition Certificate" from the Officer-in-charge of Distribution, Films Divisions, Ministry of Information and Broadcasting, Government of India to the effect that the arrangements have been made for getting regular supply of approved fixtures for the duration of the period for which licence is applied for;

(g)

a treasury receipt for the payment of fees for licence at the rate prescribed;

(h)

a clearance certificate from the Superintendent of Taxes of the area concerned to the effect that no amount of tax due under the Meghalaya Amusement and Betting Tax Act, 1939, remained unpaid;

(i)

[a certificate from the Deputy Commissioner concerned that the application for licence will not involve a benami transaction.]

[Inserted vide Meghalaya Cinema (Regulation) (Amendment) Rule 1987.]

6.

Licence for permanent cinema.

(1)

A Licence for permanent cinema may be granted by the Licensing Authority with the prior approval of the State Government in Form B appended to those Rules.

(2)

[No permanent cinema house shall be allowed within a distance of two hundred and fifty metres from the existing hospital, educational institutions, place of worship, cremation grounds, grave-yards, cemetery or other standing permanent Cinema House.]

[Amended vide Meghalaya Cinema (Regulation) (Amendment) Rules, 1990.]

(3)

[The Licence granted shall be valid for three years unless revoked earlier by the Licensing Authority. It may be renewed on the expiry of its validity for a period not exceeding three years at a time by the Licensing Authority with the previous approval of the State Government. The application for renewal shall be submitted at least one month before the date of expiry of the existing licence by the licensee in writing to the Licensing Authority accompanied by a fee as prescribed in Rule F, and certificate mentioned in Rules 5.]

[Amended vide Meghalaya Cinema (Regulation) (Amendment) Rules, 1990.]

(4)

Any licensee who fails to apply for renewal of his licence, with the requisite fee and certificates within fifteen days of the [expiry of the term of his licence]

[Amended vide Meghalaya Cinema (Regulation) (Amendment) Rules, 1980.]

, shall at the time of its renewal as required to pay a fine of Rs. 100/-(Rupees one hundred).

Explanation. - The word 'existing' means existing on the date of the issue of "No Objection" certificate under Rule (4).

7.

[Fees for permanent Cinema Licence.

[Inserted vide Meghalaya Cinema (Regulation) (Amendment) Rule 1987.]

- Licence for permanent Cinema including duplicate thereof may be granted on payment of fees at rates prescribed below-

(a)

Cinemas having 1001 seats and above Rs. 6,600 for every three years.

(b)

Cinemas having 701 seats upto 1000 seats Rs. 5100 for every three years.

(c)

Cinemas having 501 upto 700 seats Rs. 3,900 for every three years.

(d)

Cinemas having 500 seats and below Rs. 3,000 for every three years.

(e)

for a duplicate copy of any of the above licence Rs. 30 for every three years.]

8.

Application for temporary in door cinema licence.

- Any person desirous of obtaining a licence for a temporary indoor cinema shall apply in writing with the particulars and certificates, mentioned in clauses (a), (c), (d), (e), (f), (g), and (h) of Rule 5, to the Licensing Authority.

9.

License for temporary indoor cinema.

(1)

A License for a temporary indoor cinema may be granted by the Licensing Authority, with the prior approval of the State Government in Form C appended to these Rules for a period not exceeding three months. This period may however, be extended for a further period of three months on application being made, before the expiry of the current license, fulfilling the requirement of Rule 8.

(2)

No License for temporary indoor cinema shall be issued in respect of any structure which is situated within a distance of two hundred and fifty metres from any existing hospital, educational institution, place of worship, cremation ground, graveyard, cemetery or other existing permanent cinema house.

10.

[Fees for temporary Indoor Cinema License.

[Amended vide Meghalaya Cinema (Regulation) (Amendment) Rule, 1990.]

- A fee of Rupees Rs. 100/- per mensem shall be paid for a Licence for a temporary Indoor Cinema and Rs. 20/- for a duplicate copy of the licence. A surcharge of Rs. 50/- shall be levied for failure to apply for renewal of the licence in time.]

11.

Application for temporary open Air Cinemas.

(1)

A person desirous of holding a license for a temporary open Air Cinema shall apply to the Licensing Authority of the District within which it is proposed to hold the open air shows.

(2)

Every application for a temporary open air cinema license shall be accompanied by-

(i)

Full particulars regarding the ownership of, and all rights in, the cinematograph to be used;

(ii)

A true copy of the 'No Objection' certificate under sub-rule (II) of Rule 4;

(iii)

A treasury receipt for the payment of fees for licence at the rate prescribed under Rule 13.

(iv)

A clearance certificate from the Superintendent of Taxes of the area concerned to the effect that no amounts of tax due under the Meghalaya Amusement and Betting Tax Act 1939, has remained unpaid.

12.

Licence for temporary open Air Cinemas.

- A licence for a temporary open air cinemas may be granted by the Licensing Authority with the prior approval of the State Government in Form D appended to these Rules, for a period not exceeding six months;

Provided that no such cinema shows shall be allowed within such a distance as the State Government considers reasonable having regard to the surrounding circumstances, from the existing hospital, cemetery, grave yard, cremation ground or from an educational institution or place of public worship unless shows are held as a part of any function or festival of such educational institution or place of public worship.

13.

[Fees for temporary open Air and Touring Cinemas.

[Amended vide Meghalaya Cinema (Regulation) (Amendment) Rule, 1990.]

- A fee of Rs. 150/- shall be paid for a licence for a temporary open air cinema or Touring Cinema for the period for which the licence is valid and Rs. 20/- for a duplicate copy of the licence;

Provided that where the licence for touring cinema is for holding shows for the benefit of labour in industrial concerns or by academic or cultural institutions, or for exhibiting only educational films or for the benefit of the public and not for

making any profit or gain, the State Government may exempt the levy of fees under these rules.]

14.

Application for touring cinemas.

(1)

A person desirous of holding a licence for a touring cinema shall apply to the Licensing Authority of the area in which it is proposed to hold the touring cinemas.

(2)

Every application for a touring cinemas licence shall accompanied by-

(i)

Full particulars regarding the ownership of, and all right in, the cinematograph to be used;

(ii)

A true copy of the "No Objection" certificate under sub-rule (11) of Rule 4;

(iii)

A treasury receipt for the payment of fees for licence at the rate prescribed.

(iv)

A clearance certificate from the Superintendent of Taxes of the area concerned to the effect that no amount of tax due under the Meghalaya Amusement and Betting Tax Act, 1939 has been remained unpaid;

(v)

[A certificate from the Deputy Commissioner concerned that the application for a licence will not involve a benami transaction.]

[Amended ad revised vide Meghalaya Cinema (Regulation) (Amendment) Rules, 1987.]

15.

Licence for Touring Cinemas.

- A licence for a touring cinema may be granted by the Licensing Authority with the prior approval of the State Government, in Form D appended to these Rules, for a period not exceeding six months;

Provided that no such cinema shows shall be allowed within such a distance as the State Government considers reasonable having regard to the surrounding circumstances, from the existing hospital, cemetery, graveyard or cremation ground or from an educational institution or place of public worship unless shows held as a part of any function or festival of such educational institution or places of public worship.

16.

[Fees for Touring Cinema Licence.]

[Amended vide Meghalaya Cinema (Regulation) (Amendment) Rule, 1987.]

- A fee of Rs. 5 (Rupees Five) shall be levied for every month or part thereof for the period for which each touring cinema is valid;

Provided where the licence for touring Cinema is for holding shows for the benefit of labour in industrial concerns or by academic or cultural institutions, or for exhibiting only educational films or for the benefit of the public and not for making any profit or grain, the State Government may exempt this levy of this licence fee.

A fee of Re/- shall be payable for a duplicate copy of the licence.

17.

Intimation for change of venue of exhibition.

- The holder of a licence for a touring cinema may shift the venue of the exhibition from place to place within the district of issue, after giving due intimation of his programme and itinerary in advance to the Licensing Authority; provided that all the rules and safety requirements for holding cinema shows shall be duly observed and in case where it is proposed to install a touring cinema in a building the provisions of Rule 8 shall be duly complied with the licences;

Provided further that a touring cinema shall not be held for more than 15 days in any particular place where no other licence is being operated and a licence cannot be operated in more than one place at a time.

18.

Recommendation to State Government.

- If the Licensing Authority to whom an application for a licence is made, is satisfied that all the prescribed requirements of the Rules have been fulfilled and the economy of the place justifies a cinema licence like the one applied for and there is no objection of any kind to the grant of such a licence it may forward the application to the State Government with its

recommendation stating the period for which and any particular condition or restrictions under which approval to the grant of a licence is recommended by it.

19.

Inspections.

(1)

The competent officers of the PWD, the Electricity Department and the Public Health Department having jurisdiction in the area shall make necessary inspection once a year in the month of December of the premises and the building in their respective spare or duty for the purpose of giving the prescribed certificates.

Deleted vide Notification No. GA-196/79/5, dated 24th March 1980.

(2)

Defects revealed by such inspections shall be brought to the notice of the applicant or licence and of the Licensing Authority which may refuse to grant or renew the licence unless and until they are remedied to its satisfaction.

(3)

Fees of Rs. 50, Rs. 25 and Rs. 20 shall be payable respectively for each of the prescribed certificates by the Department of Electricity, Public Health and Public Works. A duplicate copy of these certificates may be granted on payment of a fee of Rs. 2.

20.

Free access to Inspecting Officer.

(1)

The licensee shall give free access to the Cinema at all hours to the officers mentioned below-

(a)

The Licensing Authority or any officer nominated by it for these purpose of carrying out the duties of the Licensing Authority under the Act and the Rules and for checking that the provisions of the Act, the Rules framed thereunder and the conditions of the licence are being duly complied with;

(b)

Any Police Officer who is required by a general or Special Order of the Licensing Authority or the District Superintendent of Police to attend the same;

(c)

The Officers of competent jurisdiction of the Departments of Public Health, Public Works and Electricity for the purpose of serving that the provisions of these rules are being duly observed and;

(d)

Regional Officers under the Central Board of Film Censors or an officer authorised by him in writing.

(2)

The licence and the plan and description if, any attached thereto shall be produced on demand by the Licensing Authority or by any officer authorised by it or by these rules to enter a place licensed under Section 5 of the Act.

The licensee, his servants, and agents shall comply with any orders issued by the Licensing Authority or by the Inspecting Officers from time to time or as occasion arises, for the safety or convenience of the public or for the preservation of order or of the public peace.

21.

Addition and Alterations.

(1)

No addition to or alteration in any portion of any premises licensed under Section 5 of the Act, necessitated by fire, any other calamity or any other cause shall be made without the sanction of the Licensing Authority.

(2)

The Licensee shall give notice in writing to the Licensing Authority of his intention to make any such addition or alteration and such notice shall be accompanied by complete plans, elevations and sections and specification of the work proposed to be executed in the manner prescribed in Rule 4.

(3)

The work shall not be commenced until the consent of the Licensing Authority has been obtained and the Licensing Authority shall not give consent unless the Executive Engineer PWD certifies that the proposed addition or alteration is in accordance with these rules.

(4)

No addition to or alteration of any part of the Cinematograph apparatus and its appurtenances or of the lighting or other electric arrangements shall be made without the sanction of the Licensing Authority.

The licensee shall give notice in writing to the Licensing Authority of his intention to make any such addition or alteration and the Licensing Authority shall not give sanction thereto unless an officer or competent jurisdiction of the Department of Electricity certifies that the addition or alteration is in accordance with the provisions of these rules.

Part II

Rules for the Licensing of Permanent Cinema

22.

All buildings or other regulations for observance at places of public amusement imposed by the Municipal bye-laws or by any other law, or by rules under any other law, for the time being in force, shall be strictly adhered to as far as they are not inconsistent with these rules.

23.

A permanent licence shall only be granted or renewed in respect of a building which as regards its location, structure, fittings electrical and other equipment complied with the provisions of the rules in these parts.

24.

Deleted vide Meghalaya Cinema (Regulation) (Amendment) Rules 1987.

25.

[
[Amended vide Notification No. GCN. 13/62/15, dated 17th December 1962.]

No portion of the place licensed shall be occupied or use as a hotel boarding or lodging house, factory, workshop or manufacture or for storage or residential purposes, except as the Licensing Authority may allow.]

26.

Smoking prohibited.

(a)

No person shall smoke and no holder of a cinema licence or his agent or manager shall permit smoking in the auditorium.

(b)

The number of persons admitted to any time into any part of the place licensed shall not exceed such number as may be specified in the licence. No persons shall be permitted to remain in any of the intersecting gangways.

In order to ensure that the maximum number is not exceeded, one more particularly to facilitate checking at any time the licensee shall issue tickets bearing serial numbers and the date and the number of the performance on the foils and counterfoils. After each performance, the tickets books shall be marked closed on the last counterfoil issued

27.

Sale of tickets.

(a)

The licensee shall make arrangements to the satisfaction of the Licensing Authority for the sale of tickets for admission tickets shall be numbered to correspond to the numbers of the respective seat in the auditorium and no more tickets shall be sold for any performance than there are seats available.

(b)

The licence shall also make arrangements to the satisfaction of the Licensing Authority for the orderly marshaling of persons desirous of purchasing tickets at the licensed place. Such numbers of booking office windows shall as provided in cinema houses for the sale of tickets to the public as the Licensing Authority may determine in order to prevent congestion of entrances.

(c)

The licensee shall cause to be affixed and displayed in a conspicuous manner in the cinema premises or at the booking office of price-list showing the various rates charged for tickets or different classes which are kept, offered or exposed by him for sale and also the hours of business during which such sale will be effected and no sale shall be effected except during the hours notified. Provided that advance, booking of seats shall be allowed on receipt of a reservation fee at the rate of 5 paise for each tickets of lowest two classes and 10 paise per ticket for the upper classes, and arrangement therefore shall be made by the license during the hours of 9 A.M. to 6 P.M. in the booking counter or any other notified

place in the cinema house.

(d)

Every licensee shall print or cause to be printed in the face of every ticket, pass or other evidence of the right of admission to be sold or kept, offered or exposed for sale, the price charged therefore plus entertainment tax, if any, and he at no time charge for any such ticket, pass or evidence of the right of admission a price in excess of what is printed thereon.

The rates of payment for admission to the different classes in the licensed premises shall be determined by the Licensing Authority and there rates shall not be increased without an order in writing by the Licensing Authority permitting such increase.

(e)

Every ticket shall be torn into parts at the time of admission, one part thereof shall be retained by the gatekeepers the other part remaining with the holder.

28.

Maintenance of records.

- Every licensee shall, at all time keep and maintain full and up-to-date sets of records showing sale of tickets in each show and their rate showing separately the taxes and faces realised and shall produce on demand all such records for inspection by an Officer deputed for the purpose by the Licensing Authority.

29.

Deputation of responsible persons.

(a)

In order to secure the safety of the audience, the licensee or some responsible agent or manager, duly conversant with the rules and nominated by him in writing for the purpose shall be incharge during the whole time of any exhibition and he shall be specially instructed by the licensee or such agent or manager as to their respective duties, in particular in relating to the carrying out of the requirements of these rules.

Sufficient number of attendants shall remain on duty during the whole time that the premises are open to the public.

(b)

All persons responsible for or employed in connection with the exhibition shall take due or cautions for the prevention of accidents and shall abstain from any act whatever which tends to cause fire and is not reasonably necessary for the purpose of the exhibition. The Licensee or the agent or manager nominated by him in writing as aforesaid shall see that the operators and every other persons who may be called upon to handle inflammable film within the building for any purpose are fully instructed as to the dangers arising from the use of inflammable film, the precautions to be observed to prevent risk of ignition and the steps to be taken in the event of a film smouldering or catching fire.

30.

Exits.

(a)

In addition to the normal means of entrance to the auditorium, emergency exits shall be provided to the satisfaction of the Licensing Authority, There shall be at least two such emergency exit.

(b)

Two separate exits shall be provided to every floor or gallery and no stairway shall discharge into a passage or corridor against or across the direction of the exit; provided that the Licensing Authority may accept any other arrangements which are likely to ensure adequate safety.

(c)

Every exit from the auditorium shall provide a clear opening space of not less than 7 feet height and 5 feet wide.

(d)

All doors shall open outwards and there shall be no type of fastening on any door liable to become slipped, dropped or secured during the performance.

If the doors be secured by locks, the lock shall be opened and the key removed during performance.

(e)

The door when opened shall be such as not to obstruct the exit passage way on the outside.

(f)

There shall be no steps in such doorways nor shall any batten, carpet or other object be so placed at or near any

doorway as to be likely to cause stumbling.

(g)

No staircase, landing lobby, corridor or passage, not being an internal passage between rows of seats, intended for use as an exit shall be less than 5 feet wide and there shall be no recesses or projection in the walls of such passages, gangways or corridors within 5 feet of the ground.

(h)

The word "Exit" or its vernacular equivalent shall be conspicuously fixed on the auditorium side of each doorway.

Unless the subdued lighting of the auditorium during performances referred to in this Rules is sufficient to make these notices clearly visible, each notice shall be lit by a special light to the satisfaction of the Licensing Authority.

31.

Seating.

(a)

The seating in the building shall be arranged so that there is free access to exits

(b)

No part of the auditorium shall be provided accommodation exclusive of passage, at a higher scale than 20 persons per 100 square feet.

(c)

All seats in the auditorium excepting those contained in private boxes shall be firmly secured to the floor. Chairs with folding seats shall be provided wherever required by the Licensing Authority.

Where benches are provided the benches shall have arms suitably fixed so that each seat is separate.

(d)

In all cases, there shall be a vacant space of at least one foot between the back of one seat and the front of the seat immediately behind measured between perpendiculars.

(e)

The distance between the screen and the front row of the seat should not be less than 18 feet.

32.

Gangways.

(a)

A clear passage or gangway shall be formed at the sides and down the centre of the seating in every part of the auditorium in such manner that no seat shall be ten or more feet distant from the passage or gangway measured in the line of seating.

The central passage or gangway shall be at least 4 feet wide and those at the sides shall be at least 3 feet wide each.

(b)

Where possible, gradients or inclined places shall be used instead of steps but no gradients or inclined planes shall be steeper than 1 in 10.

33.

Stairways.

(a)

There shall be at least 2 stairways each not less than 4 feet wide to provide access to any gallery or upper floor in the building which is intended for use by the public.

(b)

All stair cases shall be constructed entirely of bricks, stones, cement, or concrete with fire-resisting roof and ceiling and shall have solid square (as distinguished from spandril) steps and landings of approved stone or of such other fire-resisting materials and construction as may be approved by the Licensing Authority with treads not less than 11 (inches) wide and with risers of not more than 6 (inches) high (each lapping at least one inch over the back edge of the steps below it) in flights of not more than 15 or less than 3 steps.

(c)

The treads and risers of steps on each flight shall be of uniform width and height.

(d)

A continuous hand rail shall be fitted to each side of stairways.

34.

Parking arrangements.

(a)

Such arrangements shall be made for the parking of motor cars and other vehicles in the vicinity of the buildings as the Licensing Authority may require.

(b)

No vehicle shall be parked or allowed to stand in such a way as to obstruct exits or impede the rapid dispersal of the persons accommodated in the building in the event of fire or panic.

35.

Fire-precautions.

(a)

In every licensed place shall be kept such numbers of chemical extinguishers, fire- buckets, hand pumps, blanked and other small fire appliances as the Licensing Authority shall direct. The Licensee shall comply with all directions issued by the Licensing Authority for the purpose of safeguarding the public in case of fire.

(b)

All fire extinguishing appliances shall at all times be maintained in proper working order and available for instant use and all chemical fire-extinguishers shall be capable of with standing pressure of not less than 250 lbs. per square inch

(c)

During an exhibition, all fire-extinguishing appliances shall be in-charge of some person or persons specially nominated for this purpose. Such persons need not be employed exclusively looking after the fire appliances but they must not be given any other work during an exhibition which would take them away from the building or otherwise prevent them from being immediately available in case of danger or alarm fire.

(d)

The building shall provide with an efficient lighting conductor.

36.

Ventilation.

(a)

The premises shall be sufficiently ventilated to the satisfaction of the Licensing Authority. The auditorium shall be thoroughly ventilated between performances.

(b)

Unless the auditorium is air-conditioned the means of ventilation shall take the form of natural ventilation and power driven exhaust fans suitably located and of adequate size for the purposes intended.

(c)

Where natural ventilation is provided by windows or skylights which have to be darkened or obscured free permanent top ventilations shall be arranged by means of ridge or ceiling ventilators. The clear opening of such ventilators shall not be less than 1 square foot for every 10 persons that can be accommodated.

37.

Cleanliness.

(a)

The premises shall be maintained in a clean condition and the auditorium shall be swept and cleaned between performance.

(b)

Spittoons. - The cinema hall shall be provided with a sufficient number of spittoons in suitable places for the use of the public. The spittoons shall contain a strong disinfectant and shall be emptied as often as necessary. Notice, for using such spittoons shall be displayed in permanent parts of the cinema.

(c)

Sanitary accommodation. - Urinals and private accommodation on the scale given below for the seating accommodation of the auditorium and the staff shall be provided separately for each sex with a minimum of one urinal place or utensil for every fifty persons of each sex and one privy for every hundred persons of each sex for whom seating accommodation is provided. In calculating the number of convenience required under this rule, any number of persons less than 50 shall be reckoned as one hundred and fifty respectively.

Provided that a minimum of one urinal place or utensil and one privy shall be provided for each sex on every premises

and there shall be displayed in a conspicuous position a sign or a notice in English and in the vernacular indicating the sex for which the convenience is provided.

38.

Approved design, latrines, etc.

- (i) The design and description of every sanitary convenience in the premises shall be such as may be approved by the Public Works Department and the Public Health Department and its construction and situation shall be subject to the approval of the Licensing Authority.

(ii)

The site or situation of every sanitary convenience shall be such that no effluvia therefrom can arise within the rooms of the premises.

(iii)

No sanitary convenience shall communicate with any room except through the open air or through an intervening air space.

(iv)

Every sanitary convenience shall be under cover and so partitioned off as to secure privacy and shall have proper door fastenings.

39.

Enclosure for apparatus.

- The cinematograph machine shall be placed in a permanent enclosure. Such enclosure shall be at least 10 feet in height internally from floor to roof. If one machine is to be operated the floor space shall not be less than 63 square feet. If more than one machine is to be operated therein an additional 36 square feet shall be provided for each additional machine. The enclosure containing the cinematograph machine, in these rules referred as the enclosure shall be substantially constructed of fire-resisting materials.

40.

Entrance to the enclosure and means of ventilation.

- The entrance to the enclosure shall be through a closely fitting self-closing door of fire resisting materials suitably placed and opening outwards and all openings, bushes and points shall be constructed and maintained is to prevent the escape of any smoke into the auditorium. This door shall be kept closed at all time when not used for ingress or egress. Channels of ventilation shall not be allowed to communicate direct with the auditorium. The enclosure in which the machine is being operated shall be provided with an opening or vent flue in its roof of upper part of its side wall leading to the outdoor air. The vent flue shall have a minimum sectional of 50 square inches and shall be fire-proof; Provided that when the enclosure is so built that it may be constructed to open directly on the outside of a building through a window, such window shall be permitted for the comfort of the operators but such enclosure shall not be exempted from the requirements of the installation of a vent flue (as prescribed above).

41.

Position of enclosure.

- The enclosure shall, unless this requirement is expressly waived in the licence be so placed as to be outside the main building forming the auditorium and where such auditorium consists of a structure of a temporary or non- permanent character the enclosure shall be at a distance of not less than 3 feet from such structure. A space of 2 feet in width at the sides and in the front of the enclosure and a space of 6 feet at the parts in which the door is situated shall respectively be kept clear all round the enclosure. The door shall where possible, be at the back of the enclosure.

42.

Opening in enclosure.

- In the front face of the enclosure there shall not be more than three openings per projector of which the one for each projector beam must not exceed eight inches square and the other six inches square. Each shall be protected by a sheet of strong plane glass permanently fixed into the wall of the enclosure. Vertical falling steel shutters shall be fixed on the enclosure, side of each of these windows in such a way that they can be instantly released by the operator in case of need. In addition, an automatic thermostatically or electrically controlled releasing device may be fitted but such device shall not prevent emergency hand operation nor the hand operated devices prevent automatic release. Such falling shutters shall also be operable by hand from the outside of the enclosure.

43.

No unnecessary combustible material shall be allowed within the enclosure and all necessary combustible material, films, etc., except a film which is being passed through the lantern, shall be placed in an approved fire-proof box. The latter shall be kept closed at all times except when it is necessary to obtain or replace a film. Films which are being used at an exhibition shall be kept in the enclosure but in no case shall a quantity of a film in excess of 80 lbs. be kept at one time in such enclosure, any excess being stored until required in a separate place licensed under Explosive Rules.

44.

Smoking, Light, etc.

- No smoking materials, matches or naked lights of any kind shall be permitted within the enclosure or rewinding room. Notice to this effect shall be posted conspicuously at every door of these enclosure and rooms. A 'No Admission to the Public' Notice shall also be similarly displayed.

45.

Enclosure fire precautions in.

- Two liquid chemical extinguishers, two buckets of sand, two buckets of water and a blanket shall be kept inside the enclosure. A large sponge shall be kept in one of the buckets of water. One liquid chemical extinguisher shall also be kept immediately outside each door to the enclosure.

46.

Enclosure, general precautions in.

- The management and the cinematograph operators shall take all due precautions for the prevention of accidents and shall abstain from any act whatever which tends to cause fire and is not reasonable necessary for the purpose of the exhibition, no unauthorised person shall be allowed to the enclosure. The enclosure shall be kept clean and a metal bin shall be provided for waste are carbons.

47.

Cinema machine.

- The cinematograph machine shall be placed on firm supports of fire-resisting materials.

48.

The body of the cinematograph shall either be constructed of metal or lined with metal and asbestos, in which case there must be an air space between the metal and the asbestos lining. The bottom of the cinematograph machine must form a metal tray which shall be surrounded by a vertical edge at least one inch in depth.

49.

The cinematograph machine shall be provided with a metal shutter which can be readily inserted between the source of light and the film gate. This shutter shall be immediately dropped in the event of any accident to the cinematograph machine or stoppage of the film and shall only be raised when the film is in motion for the purpose of projection.

50.

The film gate shall be of massive construction and provided with ample heat radiating surface and the passage for the film shall be sufficiently narrow to prevent flame travelling upwards or downward from the light opening.

51.

Each cinematograph machine shall be fitted with two metal film boxes which shall be of substantial construction and not more than 18" inches in diameter measured internally. The boxes shall be made to travel from one box to the other. The boxes shall be so constructed as to close in a manner which will prevent the ingress of fire.

52.

Spools.

- Spools shall be chain or gear driven and films shall be so wound upon spools that the wound film shall not at any time reach or project beyond the edge of the flanges of the spool.

53.

Film rewinding.

- All rewinding of films shall be done in a room apart from the enclosure and auditorium having no opening into the wall communicating to the auditorium, or public passage ways; and the same precautions as laid down for the projectors enclosure shall apply in the rewinding room also. The absolute minimum length of film shall be exposed at any time. The room shall be kept clean and a metal bin with a close fitting lid provided for film cuttings. Electric lights only shall be used in the rewinding room and any lamps in proximity to films shall be enclosed in a stout fitting preventing breakage of the lamp-bulb.

54.

Electrical installation generally.

- (I) The entire electrical installation shall conform to the relevant provisions of the Indian Electricity Act 1910, and the rules made thereunder. The layout drawing or the electrical installation work including the switch board shall be subject to prior approval of the Government Electricity Department, No work shall be commenced until the sanction of the Government Electricity Department has been obtained to what is purpose to be done.

(II)

The electrical installation throughout the premises shall be subject to the inspection by an officer of competent jurisdiction of the Department of Electricity under the powers of the Indian Electricity Act. The instructions and directing of the officer in accordance with requirements of the Indian Electricity Act and rules and of these rules will be notified in writing to the Licensee or his agent or manager and a copy will be sent by the officer to the Licensing Authority.

55.

Electricity Cables and apparatus.

- There shall be no coils of slack electric cable within the enclosure of rewinding room. The cables in these rooms shall be either in armoured flexible covering or in high grade screwed steel conduit. The course of each such cable shall be readily traced. The necessary pipes and cable shall enter through efficiently bushed openings.

All switchgear, fuses and apparatus shall be covered in totally enclosed iron clad casing in accordance with the standards of the Indian Standards Institution. All such apparatus shall be thoroughly earth bonded in accordance with the Indian Standard Code of practice for electrical wiring and fittings in buildings.

56.

The requirements of Rue 55 shall apply to cables and apparatus fitted within the enclosure and rewinding room for electric lighting and also to any cable or apparatus used to supply electrical energy to the Sound Reproduction Apparatus.

57.

Voltage limit.

- No electric current at a higher pressure than 250 volts shall be used within the enclosure at anytime without the special written sanction of a competent authority of the Department of Electricity.

58.

Electrical Circuits separation of.

- The cables for the cinematograph machine shall be taken as a separate circuit fro the source of supply and from the supply side of the main fuse in the general lighting circuit on such premises. Efficient switches and fuses shall be inserted at the point where the supply is taken and in addition; an efficient double pole switch shall be fitted in the cinematograph lamp circuit inside the enclosure.

59.

Lantern illuminant lighting.

- No illuminant other than electric light shall be used in a cinematograph lantern.

60.

Premises, lighting of.

(a)

The general lighting of the auditorium and exit doorways and passages shall not be controlled from within the enclosure, but a duplicate lighting system may be controlled from the enclosure or a system permitted whereby not more than ? (one-third) of the general lighting is controlled from the enclosure, either system to afford sufficient lighting for emergency exit of the audience.

(b)

No fans, heaters or motors may be connected to the lighting circuits. All wall plugs and sockets must be of 3 pin type of approved Home, Office hand shield pattern and able to be plugged in one position only. All metal clad apparatus use on the socket must be earth bended. The system of wiring employed shall be in accordance with the Indian Standard Code of practice for electrical wiring and fittings in building.

(c)

Every circuit in the premises shall be identified by its Description and Number and each Distribution Box shall contain; affixed within its cover, an identification card be description and number to permitting instant identification in emergency.

(d)

An emergency lighting system consisting of cloze oil lamps may be approved, provided such lamps are always kept trimmed and burning during the whole of any performance and afford sufficient illumination. In the opinion of the competent authority of the Department of Electricity. Each attendant shall carry an efficient electric torch or lamp.

61.

Resistances.

- Resistance frames shall be made entirely of fire-resisting and shall be so constructed and maintained that no coil or other part shall at any time become unduly heated. All resistances with the exception of resistance for "effect" (dimming) purposes, or the resistance for the regulation of the Motor Generator set for the control of the supply to the Projector Are, if that resistance be of parallel type shall be placed outside the enclosure and if inside the auditorium they shall be adequately protected by a wire guard or other efficient means against accidental contact. They shall not be permitted to become so heated that a piece of dry newspaper placed in contact with any part of the resistance would ignite. The operator shall satisfy himself before the commencement of each performance that all cables, leads, connections and resistances are in proper order. The resistances if not under constant observation, shall be inspected at least once during each performance. If any fault is detected current shall be immediately switched off and shall remain switched off until the fault has been remedied.

62.

Operator.

- No less than three, where double machine is installed and not less than two, in case of signed projector operators shall be engaged in manipulating the projectors and one apprentice may be engaged for each machine. It shall be the duty of one of the operators to take charge of the films after they have pass over through the lantern. Each operator shall possess a certificates granted by an officer of the Department of Electricity not below the rank of an Inspector. Such certificate shall issued no payment of a fee of Rs. 20 and shall be valid for one year unless sooner revoked;

Provided that an application for the renewal of an operator's certificate shall be made at least one month before the date of the expiry of the old one, failing which a penalty of Rs. 5 for each month of default shall be leviable in addition to the annual renewal fee of Rs. 10.

An operator shall not be granted a certificate unless-

(I)

he possesses a minimum general education upto class VIII standard and has completed two years apprentice training in operation of Projector machine.

(II)

he is thoroughly conversant with the municipal bye-laws and other rules relating to cinematograph exhibitions and precautions against fire;

(III)

he is acquainted with the most speedy and effective method of dealing with fire;

(IV)

he possess a fair knowledge of the elements of electric power, direct and alternating current, voltage, emperage, etc., and in the case of muffasi operators, a working knowledge of petrol and bill engines if such engines are over used for exhibitions;

(V)

he is proficient in the handling, winding, repairing and efficient cleaning of films and

(VI)

the certificate shall bear, affixed upon it, a certified photograph of the holder.

Part III

Rules for the Licensing of Temporary and Touring Cinemas

63.

The Cinematograph apparatus shall have been certified to be usable without danger by a competent authority of the Department of Electricity within a year of the date on which the exhibition is given to the public.

64.

The Licensing Authority may refuse a licence, or stop the operation of the licence, for a temporary or touring cinema if in its opinion any portion of the building or structure is in dangerous proximity to any other building.

65.

The Licensing Authority may require an applicant for a temporary indoor cinema to furnish such plans of the premises and such specifications as it may consider necessary.

66.

In the case of exhibitions given in tent or both or in any shelter or structure composed of, or covered with combustible materials or of a movable character, the cinematograph apparatus shall be operated from outside such tent, both, shelter or structure and shall be placed at a distance of at least six feet therefrom.

67.

The auditorium shall be provided with a sufficient number of exits suitably placed and designed to permit safe exit in case of alarm to the satisfaction of the Licensing Authority, such exits shall be at a sufficient distance from the location of the projector and allied apparatus, to allow exit without passing near the projector.

A clear passage or gangway shall be kept to all such (exits. No apparatus, chairs, forms, cables or other obstacles shall be placed is such passage or gangway.

Such requirements of Rule 30 as the Licensing Authority may require shall apply to premises used for occasional exhibitions.

68.

Without prejudice to the generality of the foregoing rules, no tent, booth or similar structure shall be used for the purpose of a cinematograph exhibition if it is enclosed by a wall or walls which do not permit of adequate means of egress and which are erected within 30 (feet) of such tent, booth or similar structure.

69.

(a)

The occupier of the premises on which the performance is to be given shall be responsible for the observance of the requirements in Rules 3 [except clauses (b) and (c) of sub-rule III], 20 and 21 in Part I of these Rules.

(b)

The provisions of the rules in Part II of these Rules shall apply mutatis mutandis to licenses for temporary and touring cinemas.

70.

These Rules shall be conditions of every licence and every licence shall also be issued subject to the following conditions regarding apparatus and its operation being observed.

Conditions

A. (1) The projector and the illuminant shall be entirely closed in a casing of fire resisting material except for such openings as are necessary for effective manipulation and ventilation.

(2)

Any electric wiring or terminals fitted within the casing shall be so paced that it shall be impossible for films in use in the projector to come in contact with them.

(3)

Each electric circuit on the projector shall be fitted with a separate switch controlled from outside the casing, and so placed as to be within reach of the operator when standing at the projector.

(4)

The heat of the illuminant, and its position in relation to the optical system, shall be such that it is impossible for the rays of light to ignite a stationary film.

This requirements will be considered as met if a film stationary in the film-gate fails to ignite within a period of three minutes.

B. (1) The projectors shall be fitted with film boxes of fire-resisting material, which shall be made to close in such a manner and shall be fitted with film-slots so constructed as to prevent the passage of flame to the interior of the box.

(2)

The film-boxes fitted to the projector shall be so constructed as to be easily detachable from the apparatus.

(3)

All films shall be contained in film-boxes, which shall be attachable to or removable from the projector without being opened, so that at no time shall a film be exposed except the portion necessary for threading up.

(4)

During an exhibition, not more than three film Boxes (including the two actually attached to the projector) shall be in the enclosure on reserved space as the case may be, any one time. If further film-boxes are required they shall be kept in closed metal boxes outside the enclosure or reserved space as the case may be and if in the building, in a place approved by the Licensing Authority and subject to the prescribed requirements as to limitations of quantity and weight.

C. (1) All Electric conductors shall be of adequate size for the current they have to carry and shall be efficiently covered with insulating material and shall be either (I) place out of reach of persons in the auditorium and where they are not liable to damage or (II) protected against injury by suitable castings.

(2)

Resistances shall be made entirely of fire resisting materials, and shall be so constructed and maintained that no coil or other part at any time shall become unduly heated. If inside the auditorium, they shall be adequately protected by a wire guard of other efficient mean or preventing accidental contract, and shall not be placed within reach of persons in the audience.

(3)

The operator shall satisfy himself before the commencement of each performance that all cables leads, connections, resistances and fuses are in proper working order. The resistances, if not under constant observation, shall be inspected at least once during each performance. If any fault is detected, current shall be immediately switched off, and shall remain switched off until the fault has been remedied.

(4)

The projector circuit shall be independently protected by double-pole switch and fused properly enclosed and placed near the source of supply or the point of connection with the general lighting supply, as the case may be. Provided that, where the current does not exceed five amperes and the connection of the projector circuit to the general lighting supply is made by means of a connector as described in paragraph (5) below, such a connector may be used in substitution for a double pole switch.

(5)

Where the projector circuit is connected to the general lighting supply, it shall be connected only at a point where the wires of the general lighting supply are of ample for the current they may have to carry and the connection shall be either by (a) securely made joints or connections or (b) a properly constructed wall type connector of hand shield type. It shall not be connected to any lighting fitting or by means of an adaptor to a lamp.

D. Rewinding of Films. - No rewinding of films shall be done within the enclosure or reserved space as the case may be not in any rooms or space to which the public have access or in which any illumination other than electric light in enclosed bules is employed. Smoking in the vicinity when rewinding is prohibited.

E. Emergency Lighting. - An efficient portable electric battery or torch with an efficiently protected bulb shall be available in the reserved space and in the enclosure and the rewinding room or space throughout the performance and previous to subsequent film winding or rewinding process.

Such other lighting as the Licensing Authority may require shall be provided for the safe exit in emergency of the audience in addition to the normal lighting system installed in the premises.

F. Location of Projector and Allied Apparatus. - (1) No portable apparatus shall be so placed in any auditorium or communicating passage way as to interfere with entrance and exit of the audience nor so that any ignition of film might prevent safe exit.

(2)

The projector shall be placed on a firm support Amateur Standard Apparatus. No projector other than an Amateur size projector shall be used on any premises within the auditorium unless provided with either a permanent or temporary enclosure.

(3)

(i)

Reserved Space. - If such an Amateur size projector be worked without an enclosure, it shall be situated within a space known as the 'Reserved Space' into which no person other than the operators shall be allowed during an exhibition. This space shall be ample for the operators and the necessary apparatus and safety utensils.

(ii)

Five precautions in reserved space with Amateur Standard Projector. - One bucket of sand, one bucket of water and a blanket shall be kept within the reserved space.

A large sponge shall be kept in the bucket of water. No naked light nor any light other than an efficiently protected electric bulb light, no matches or smoking materials shall be within the reserved space.

(4)

Full sized apparatus. - Such apparatus, usually 36 M/M width or cover-shall, if placed within the auditorium or in any portion of the premises or where persons other than the operators resort during performances, only be used within the approved type of permanent enclosure or permanent cinemas or within the temporary enclosure of condition G. below:

Provided that the operation of full size apparatus shall not be permissible from a room adjoining an auditorium unless that room complies in every respect with the requirements for a cinema enclosure:

Provided that the operation of a full size apparatus without enclosure shall be permissible from a verandah of a building under the following conditions-

(i)

The verandah be of fire-resisting material in any part within ten feet of the apparatus.

(ii)

No persons other than the operators, are allowed on the verandah within ten feet of the apparatus. The area so formed shall be a reserved space.

(iii)

The doorway, window or other aperture through which the beam of light is projected be securely closed throughout the exhibition with a fire-resisting screen in which shall be not more than two orifices for the operation of the apparatus. Such orifices shall not be large than 8" by 8", and each shall be provided with a stout sheet of glass further protected a falling shutter of fire-resisting material in such a way that each can be instantly released by the operator in case of need.

(iv)

Any other doorway, window or aperture within ten feet of the apparatus be entirely blocked with a fire-resisting screen in which there shall be no openings of any description.

(v)

If a doorway be blocked under the provisions of sub-clauses (iii) and (iv) above, there shall be available other doorways in sufficient number and so placed as to ensure ready entrance and exit of the audience from the auditorium.

(vi)

Fire precautions at the projector-No drapery and no unprotected combustible materials other than such materials as may compose the floor shall be within ten feet of the cinematograph; nor shall naked lights, matches or smoking utensils or tobacco be taken within the reserved space of (ii) above. Two chemical fire extinguishers, two buckets of water, one of which shall contain a large sponge and a blanket shall be kept at the projector.

G. Temporary Enclosure. - The requirements for a temporary enclosure are as follows-

(1)

Construction. - A strong proof box constructed of sheet iron or steel on a substantial frame work and securely fastened together. The internal height from floor to roof shall be at least 8 feet. If one machine is to be operated the floor space shall not be less than 48 square feet. If more than one machine is to be operated therein an additional 24 square feet shall be provided for each additional machine. The enclosure shall be otherwise itself conform in every other respect to a permanent enclosure:

Provided that, if the temporary enclosure be kept in "Situ" or stored on the premises and does not travel with a portable apparatus thereby avoiding risk of breakage, such enclosure, may be asbestos sheeting or other approved type of fire-resisting frame work.

(2)

Electrical and other necessary apparatus. - All apparatus situated therein shall similarly conform to that in a permanent enclosure, subject to such apparatus being of a portable and not of a permanent fixed nature.

(3)

General Working. - The requirements regarding care in working, Fire-fighting appliances, prohibition of inflammable materials, lights, matches, smoking utensils, film rewinding and admission of the public prescribed for permanent enclosure in permanent, cinemas shall apply to temporary enclosure for occasional exhibitions.

71.

The license of touring cinemas may shift the venue of the exhibition from place to place after giving due intimation of his programme and itinerary in advance to the Licensing Authority provided that all the rules and safety requirements are

duly observed.

72.

Where the shows are held by the manager of industrial concerns for the benefit of labour in industrial areas or by academic or cultural institutions the rates of admission shall be nominal and such shows shall not be utilised by the Licensee or making profit.

Part IV

73.

Revocation or suspension of Licence.

(1)

The Licensing Authority may at its discretion revoke or suspend the licence granted to any cinema within its jurisdiction if it is satisfied-

(a)

that the licence was obtained through fraud or misrepresentation; or

(b)

that the Licensee has committed a breach of any of the provisions of the Act or the rules made thereunder or any conditions or restriction contained in the Licence or of any direction issued under sub-section (2) of Section 5 of the Act; or

(c)

that the building and installations are not maintained in proper order; or

(d)

that the cinema is used or conducted in a manner prejudicial to the public interest:

Provided that the Licensing Authority shall give the Licensee an opportunity to show, cause before taking any action under his sub-rule.

(2)

Appeal under Section 9 of the Act. - Where the order suspending, cancelling or revoking a licence under the proceeding of clause has been passed by a Licensing Authority any person aggrieved by the order may, within the period prescribed under Section 9 of the Act prefer an appeal on payment of fees of Rs. 40 and Rs. 3 for each of the permanent and temporary (including open air and touring) cinema Licences respectively to the State Government which may pass such order as it thinks fit. The order of the State Government shall be final.

74.

Exemption for existing cinema house. The Licensing Authority may in individual cases exempt any permanent cinema house which has been in existence before the commencement of these Rules from any provision of these Rules which he may find after due enquiry, to be not practicable to be complied with.

Form A

No Objection Certificate

[Rule 4]

In exercise of the powers conferred by Rules 4(H) of the Assam Cinemas (Regulation) Rules, 1960 (as adopted by the Meghalaya of Adaptation of Laws and Order No. 3) 1973, I,.....Deputy Commissioner of.....District do hereby grant this certificate that there is no objection to Shri.....of.....P/S in.....District Constructing a cinema house at..... of..... Village/P.S.....in....District according to the approved plan and the site plan herewith enclosed.

This "No Objection" certificate is valid for a period of one year from the date hereof and if within this period the proposed cinema home is not constructed, a fresh no objection certificate should be applied for.

This certificate does not of itself authorise the use of the proposed building for cinematographic exhibition nor does it by any means guarantee the issue of a cinema licence which depends on separate application.

Deputy Commissioner

Vide Notification No. GEN. 18/62/15, dated 17th December/1962.

Form B

The Meghalaya Cinema (Regulation) Act 1953 (as adapted)

Form of Licence (Permanent Cinemas)

(Rule 6)

No.....

[.....]

[Name of theatre, etc.,]

situated at [.....]

[Address.]

within the district of.....is licensed under Section 5 of the Meghalaya Cinemas (Regulation) Act 1953 (Assam Act XIV) of 1953 as adapted by Meghalaya as a place where exhibition by means of a Cinematograph may be given.

This licence has been granted to [.....]

[Name of Applicant.]

and shall remain in force until the.....provided that the said [.....]

[Name of Applicant.]

owns, lease or manages the said [.....]

[Name of theatre, etc.,]

The Licence is granted subject to the provisions of the Meghalaya Cinema (Regulation) Act, 1953 (as adapted) and of the rules made thereunder and to the conditions set forth in the attached Schedule.

Deputy Commissioner of.....

The.....19...

Form C

The Meghalaya Cinemas (Regulation) Act, 1953 (as adapted)

Form of Licence (Temporary Indoor Cinemas)

(Rule 9)

No.....

Shri/Shrimati [.....]

[Name of Applicant.]

of [.....]

[Address.]

within the district of.....is licensed under Section 5 of the Meghalaya Cinemas (Regulation) Act, 1953 (Assam Act XIV of 1953) as adapted to hold temporary indoor exhibitions by means of cinematograph.

This licence shall remain in force only for a period of.....from the date hereof. The license is granted subject to the provisions of the Meghalaya Cinemas (Regulation) Act, 1953 (as adapted) and of the rules made thereunder and to the conditions set forth in the attached Schedule.

Deputy Commissioner of.....

The.....19

Form D

The Meghalaya Cinemas (Regulation) Act, 1953 (as adapted)

Form of Licence

(Temporary Open Air Cinemas/touring Cinemas)

(Rules 12 and 15)

No.....

Shri/Shrimati [.....]

[Name of Applicant.]

of [.....]

[Address.]

within the district of is licensed under Section 5 of the Meghalaya Cinemas (Regulation) Act, 1953 (Assam Act XIV of 1953) as adapted to hold temporary exhibitions in the open air by means of a cinematograph.

The licence shall remain in force only for a period from the date thereof.

This licence is granted subject to the provisions of the Meghalaya Cinemas (Regulation) Act, 1953 (as adapted) and of the rules made thereunder and to the conditions set forth in the attached Schedule.

Deputy Commissioner of.....

The.....19...

of Conditions and Restrictions

1. The licensee shall be responsible for punctual submission of the quarterly statements of cinema collections in prescribed form to the Licensing Authority for onward transmission to the Officer-in-charge of Distribution, Films Division, Ministry of Information and Broadcasting Government of India.

2. The number of persons, admitted at any one time into any part of the licensed place shall not exceed the number specified below as the number of persons who may be accommodated in such part.

The Licensing Authority will here enter the number of persons who may be admitted into the several parts of the building as required under Rule 26 (b).

3. Every licensee shall, if so required by the Licensing Authority be bound to exhibit films produced by the producers of Meghalaya or Films dealing with matters relating to Meghalaya for such period of time as may be required by the Licensing Authority.

3A.

Every licensee, if so required by the Licensing Authority, be bound to project free of cost slides supplied by any Department of the State or the Central Government concerning matters of Public importance.

(vide notification No. GEN. 2/59pt/ Dated 3rd January, 1962).

4. The licensee shall so regulate the exhibition of cinematograph films that, at every performance open to the public, approved films are exhibited, the approved films to be exhibited in relations to other films at every such performance being in the same proportion as one is to five or the nearest lower or higher approximation thereto.

5. Only such films produced in India as are certified by the Central Government with the previous approval of the Films Advisory Board. Bombay, to be scientific films, films intended for Educational purposes, films dealing with news and current events or documentary films shall be deemed to be approved films for the purpose of these directions.

6. Nothing contained in these direction shall be construed as requiring the licence. -

(a)

to exhibit at any performance more than 2,000' (feet) of approved films of 35 mm. size, or the corresponding footage of approved films of 16 mm size; or

(b)

to exhibit any approved film for more than two weeks continuously; or

(c)

to re-exhibit any approved film which has been shows for two continuous weeks; or

(d)

to exhibit approved films to the full extent indicated hereinbefore in the event of sufficient number of length of approved films not being available for the time being.

7. For the purpose of computing the corresponding footage of Films of 16mm size in relation to films of 35mm size, 400' (feet) of films of 16mm size shall be deemed to be equivalent to 1,000' feet of films of 35 mm size.

8. The licensee shall not display or cause to be displayed, any photographs, picture of poster which depicts or represents or purports to represent a scheme or short which has been excised from any film under the orders of the Central Board of Film Censors of the Central Government.

9. The licensee shall not exhibit or permit to be exhibited in the cinema-

(a)

any film other than a film which has been certified by the Board of Film Censors as suitable for for un-restricted public exhibition or for public exhibition restricted to adult and which, when exhibited, displays the prescribed mark of the Board and has not been altered, or tampered with any way since such mark was affixed thereto;

(b)

Any film which has been certified by the Board of Film Censors as suitable for public exhibition restricted to adults to any person who is not an construed adults;

Note. - This condition shall not be as prohibiting the exhibition of a film in respect of which an 'A' certificate has been granted to children in arms below' the age of three.

10. Posters and pictorial publicity materials pertaining to cinematograph films which are a cross mis-representation of the Film itself and which even when and clearly obscene are objectionably suggestive shall not be displayed in the Cinema Hall.

11. No poster, advertisement, sketch, synopsis or programme of a film shall be displayed, sold or supplied either in or anywhere outside the licensed place which is likely to be injurious to morality or to encourage or incite to crime or to lead

or disorder to offend the feelings of any section of the public or which contains offensive representations of living persons.

12. The licensee shall not exhibit or permit or cause to be exhibited in the cinema any slide which displays any advertisement which is of an indecent or obscene nature or the publication of which is prohibited under any law for the time being in force.

13. Save as the Licensing Authority or the District authorities may be written order permit, no loud speaker, gramophone, band, drum bell, horn, whistle, siren or musical instrument of any kind shall be employed or allowed to be used as an advertisement or to attract attention in or outside the licensed place, nor shall any device be employed which is designed or serves to deliver the entertainment to persons outside the licensed place.

Inserted vide the Meghalaya Cinema (Regulation) (Amendment) Rules 1987.

14. At least 48 hours before any film is exhibited, the licensee shall supply a synopsis of the contents of the film to the District Magistrate of the District in which the licensed place is situated

15. The licensee shall not without the permission of the Licensing Authority assign, sublet or otherwise transfer the licence, the licensed place or the cinematograph, nor shall the licensee without permission as aforesaid, allow any other person during the period of currency of the licence, to exhibit films in the licensed place

16. Any accident, fire or explosion occurring within the licensed premises which is attended with loss of human life or serious injury to persons or property' shall be reported immediately to the nearest Magistrate or the Officer-in-charge of the nearest police station and by telegraph or telephone where such means of communication are available.

17. Free access to the licensed premises shall be given at all reasonable time to an Inspector and every facility shall be afforded to such Inspector for ascertaining the the rules and conditions are duly observed.

18. Adequate precautions shall at all times be taken for the prevention of accidents by fire or explosion and no smoking, fire or light or articles capable of causing fire to film shall be permitted at any time within the licensed premises.

19. If the Licensing Authority calls upon the holder of a licence by a notice in writing, to execute any repairs to the Licensed premises which are in the opinion of such authority necessary for the safety of the premises the holder of a licence shall execute the repair within such period not being less than one weeks from the date of receipt of notice, as may be fixed by the notice.

20. Not more than three shows shall be held at the place licensed, between 2 p.m and midnight on any week days. Outside these hours i.e., before 2 p.m. or after midnight no show shall be allowed at the place licensed on any week days except with the previous permission of the Licensing Authority obtained in writing at least seven days in advance: Provided that no film certified for public exhibition restricted to adults only shall be exhibited during the matinee shows on week days.

N.B. - There will be no restriction of the number of shows in a day on Sundays and public holidays provided that no show shall be allowed after midnight.

21. The licensee shall not store inflammable film in quantity exceeding 200 lbs. at the place licensed unless a separate licence for the storage of such films has been obtained by him from the Chief Inspector of Explosives.

22. Film shall be stored-

(i)

in a storage shed constructed of suitable unflammable materials, the doors and ventilators may be of wood and shall open outwards; or

(ii)

in a tent, placed on private ground and separated by a distance of not less than 25 feet from any dwelling house, other building, high-ways, street or public place.

23. The storage shed not form part of, or be attached to any building in which any person resides or works or where persons assemble for any purpose unless it is separate therefrom by a substantial floor or partition.

24. The storage shed, if any, or building, shall not be situated under any staircase or under any other means or exit likely to be required to be used for escape in case of fire.

25. The storage shed shall be adequately ventilated near the ground level and also near or in the roof. All ventilators shall be fitted with metal girds or similar suitable protection on the outside face of the wall and a layer of number 16 mesh brass or other non-corroding metal wire gauze on the inside face of the wall.

26. The storage shed or tent shall not be used for any other purposed.

27. (i) All operations connected with examination, repairing, clearing, waxing and re-winding of films shall only be carried

out in the examination room which shall not be used for any other purpose and shall be separated from the storage shed by a partition.

(ii)

The examination room shall be constructed of fire resisting materials only and well ventilated to the outside air.

(iii)

Not more than 2 rolls of film shall only be opened for examination at any one time per examiner and not more than 100 rolls in all shall be under examination or repair at any one time.

28. All film wastes and scrap in the examination room shall be placed immediately in a strong metal receptacle fitted with a tight hinged lid and marked "Film Waste" and kept under water until disposed of. The contents of the drums shall be disposed off at frequent intervals by burning under adequate precautions or in such other manner as may be prescribed by the Licensing Authority.

29. No alterations shall be carried out in the storage shed or examination room without the previous sanction in writing of the Licensing Authority. Such alterations so sanctioned shall be shown on an amended plan to be attached to this licence.

30. The furniture and other articles shall be arranged as to afford free egress to persons in the room in the event of fire.

31. There shall be kept posted up in large characters in the rooms-

(i)

full instructions as to the action to be taken in case of fire; and

(ii)

full directions as to the means of escape from the room in case of fire.

32. No two sheds for the storage of film shall adjoin each other or be in the same building.

33. The licensee shall comply with such other conditions as may be prescribed from time to time by rules.

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